

HEADNOTE

“The Court has discretion to stay proceedings awaiting any relevant decision from the EPO, provided such decision is expected rapidly. There should be a concrete expectation (i.e. a known date in time) for a decision which date should be in the near future such that it is clearly expected to be delivered before an expected decision by the UPC. In exercising Court's discretionary power on the basis of Article 33(10) UPCA in connection with Rule 295 sub a RoP, the Court has to assess the relevant facts and circumstances and has to take into account the interests of both parties. Where the interests of the parties do not align, the Court has to weigh up the interests upon deciding a request to stay proceedings.”

COURT
Central Division in Munich

PROCEEDINGS
Action for revocation

PATENT
EP3056564

Method for purification of retinal
pigment epithelial cells

KEYWORDS

Article 33(10) UPCA. Rule 295 sub a RoP. ...

Article 33 Competence of the divisions of the Court of First Instance

SUMMARY

The Central Division in Munich issued a decision on an action for revocation. The patent at issue relates to a method for purification of retinal pigment epithelial cells. According to the headnotes of the decision, the Court may stay proceedings to await a relevant EPO decision if that decision is expected to arrive quickly with a concrete and near-term deadline. When the interests of both parties differ regarding a stay request, the Court must carefully weigh those interests against each other while assessing the relevant facts and circumstances under Article 33(10) UPCA and Rule 295 of the Rules of Procedure.